

Alabama Construction Stormwater Permit Analysis

Seventeen years of NPDES Construction General Permit (ALR100000) coverage, inspection records, and enforcement actions from the Alabama Department of Environmental Management eFile system

Prepared for: Mobile Baykeeper

Coverage period: June 8, 2009 through April 27, 2026

Data source: ADEM eFile public portal (app.adem.alabama.gov/eFile) and Laserfiche WebLink document archive (lf.adem.alabama.gov/WebLink)

Records analyzed: 123,424 permit documents · 22,325 unique construction sites · 33,205 inspection reports

Report date: April 28, 2026

This analysis was made possible by automated public-records collection at scale. Mobile Baykeeper has long sought a longitudinal view of NPDES Construction General Permit coverage and enforcement across Alabama. The dataset behind this report — every electronically filed ALR10-prefix document since June 2009 — was assembled, parsed, and analyzed in approximately 24 hours of compute time using open-source tooling. The underlying data is public; the bottleneck has always been the scale of records to process. The full per-site, per-company, and per-inspection CSVs accompany this report.

Executive Summary

22,325

construction sites have started in Alabama under the NPDES Construction General Permit since electronic records began (2011-2026)

8,519

of those sites had at least one inspector-cited Best Management Practice (BMP) violation in writing

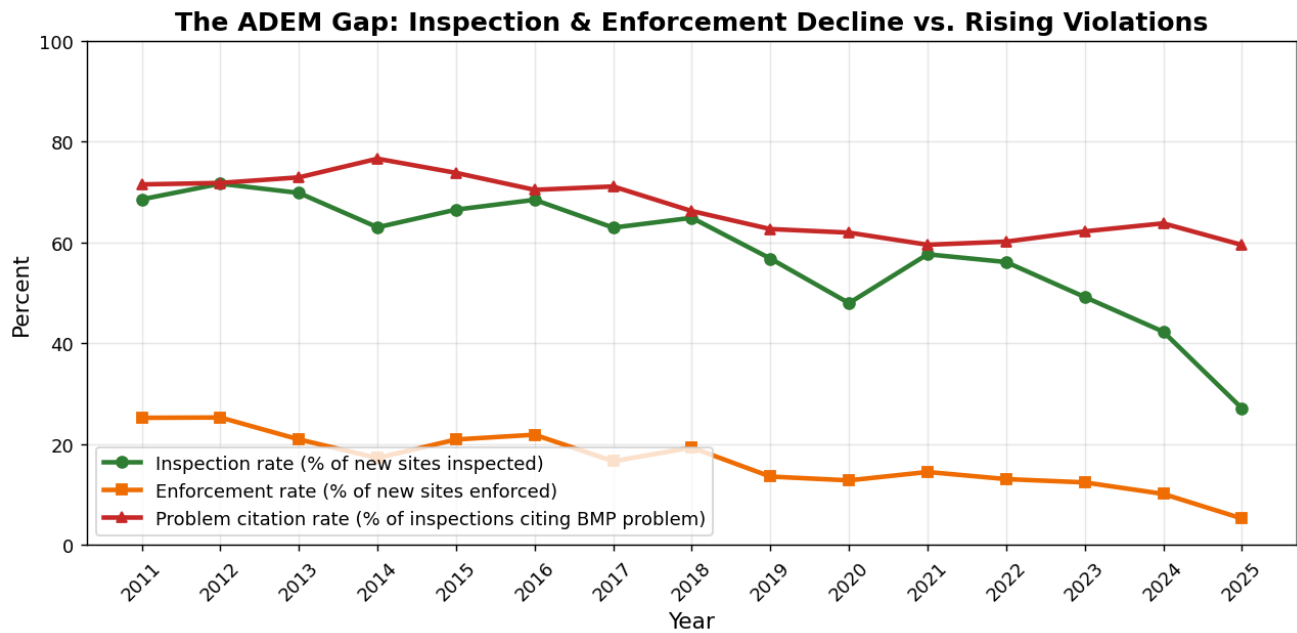
6,230

sites with a documented BMP violation received **zero formal enforcement action** — the systemic ADEM enforcement gap

Across the seventeen years of digital records, Alabama's Department of Environmental Management has issued roughly 1,200 to 1,750 new construction-stormwater permits per year. New-permit volume has held remarkably steady: there is no evidence of a building boom in the data, only modest year-over-year fluctuation. What has changed dramatically over the same period is the regulator's *follow-through*. **Inspection rates have fallen from 70% in 2012 to 27% in 2025; formal enforcement actions have collapsed from 25% to 5% of new sites.** Inspectors who do visit sites are finding more violations, not fewer — the in-writing problem-citation rate has climbed from 29% in 2011 to 65% in recent years. The conclusion is unavoidable: ADEM's regulatory intensity is being cut by attrition, not by improving site conditions.

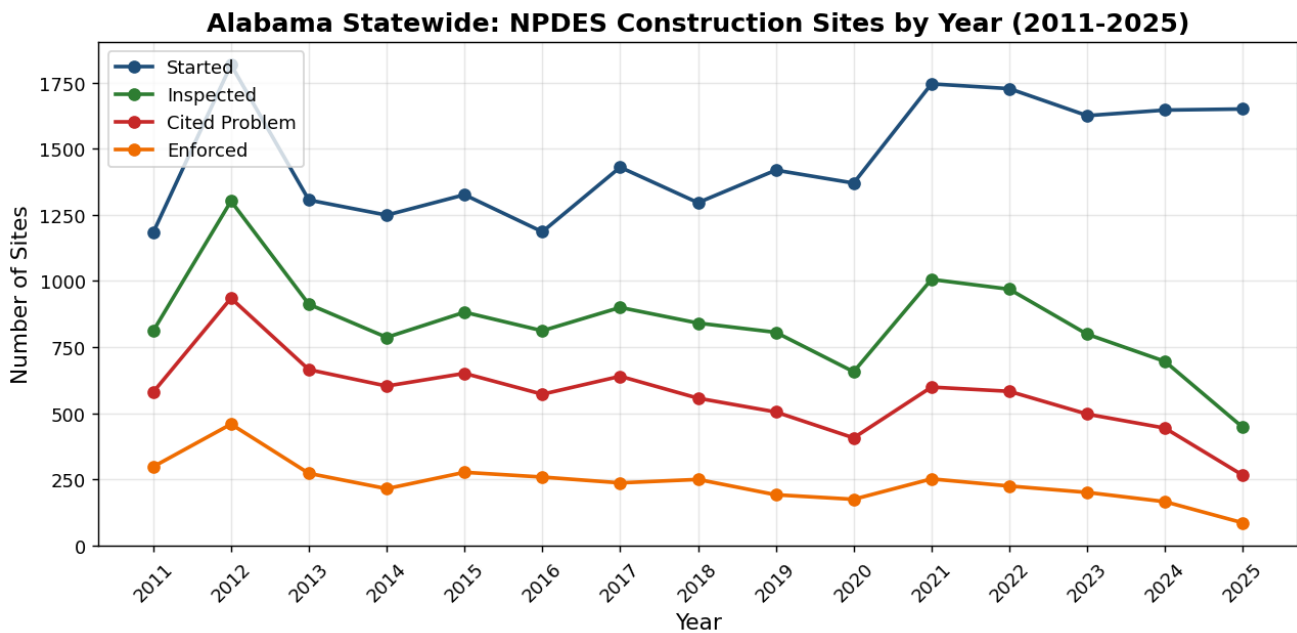
The Regulatory Decline: Statewide Trend

The single chart below contains the structural finding behind every per-builder statistic in this report.



From 2012 to 2025, the inspection rate (green) and enforcement rate (orange) both fell by roughly two-thirds. Over the same window, the rate at which inspectors who *do* visit a site cite a BMP problem in writing (red) has climbed from under 30% to over 60%. ADEM's field staff are documenting more violations per inspection while the agency files dramatically fewer enforcement actions in response.

Statewide Sites Started by Year

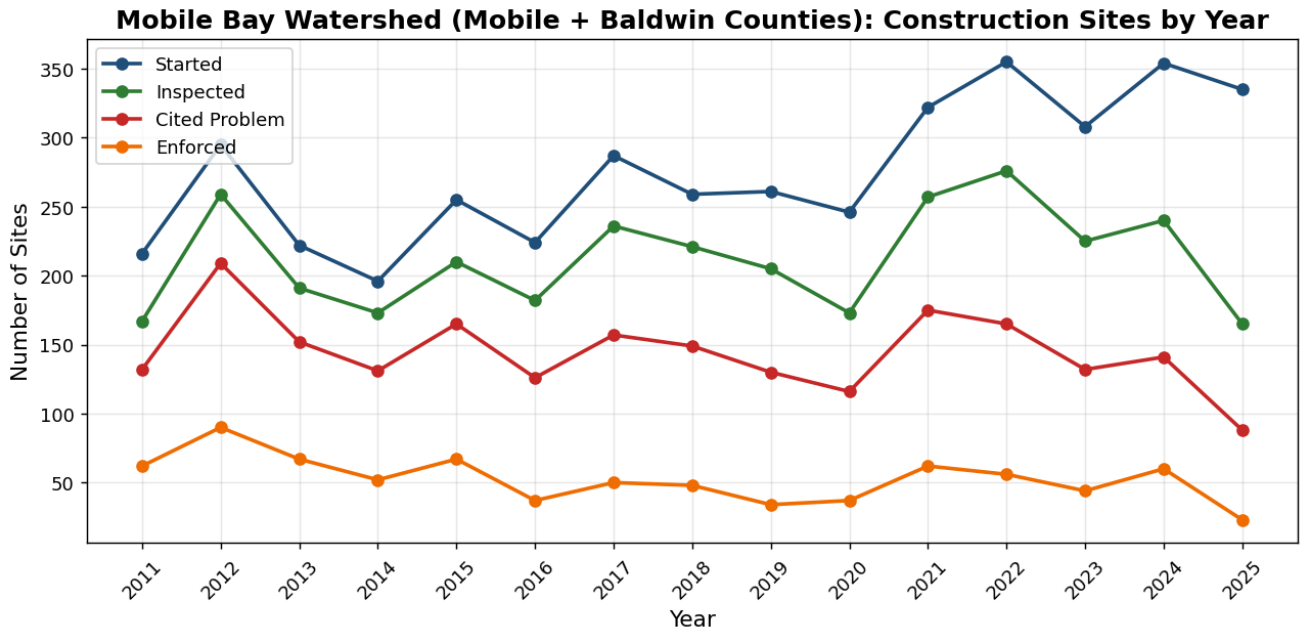


Year	Sites Started	Inspected	Inspection Rate	Cited BMP Problem	Problem Rate	Enforced	Enforcement Rate
2011	1,183	811	69%	580	72%	298	25.2%
2012	1,817	1,302	72%	935	72%	459	25.3%
2013	1,306	912	70%	665	73%	273	20.9%
2014	1,249	787	63%	603	77%	215	17.2%
2015	1,326	882	67%	651	74%	277	20.9%
2016	1,186	812	68%	572	70%	259	21.8%
2017	1,430	900	63%	640	71%	237	16.6%
2018	1,296	841	65%	557	66%	250	19.3%
2019	1,419	806	57%	505	63%	192	13.5%
2020	1,370	657	48%	407	62%	175	12.8%
2021	1,745	1,006	58%	599	60%	252	14.4%
2022	1,727	969	56%	583	60%	225	13.0%
2023	1,625	799	49%	497	62%	201	12.4%
2024	1,646	696	42%	444	64%	166	10.1%
2025	1,650	447	27%	266	60%	86	5.2%

"Sites Started" counts each unique permit by the year of its first Notice of Intent (NOI) filing. "Cited BMP Problem" means the on-site inspector wrote at least one finding in the inspection report flagging silt-fence failure, inlet protection failure, missing gravel construction entrance, vegetation/slope stabilization failure, or general "BMPs not implemented" language. "Enforced" means a formal Notice of Violation (ENOV), Enforcement Warning Letter (EWL), or Enforcement Action Order (EAO) was filed against the permit.

Mobile Bay Watershed: Mobile and Baldwin Counties

Mobile Bay-specific finding: 4,223 construction sites started in Mobile and Baldwin counties since 2009. 2,173 of them had inspector-cited BMP violations. Only 794 received formal enforcement. **1,594 sites in the Mobile Bay watershed have documented violations and no enforcement on record.** That is the local equivalent of the statewide ADEM gap.



Mobile Bay Yearly Trend

Year	Sites Started	Inspected	Inspection Rate	Cited Problem	Problem Rate	Enforced	Enforcement Rate
2011	216	167	77%	132	79%	62	28.7%
2012	295	259	88%	209	81%	90	30.5%
2013	222	191	86%	152	80%	67	30.2%
2014	196	173	88%	131	76%	52	26.5%
2015	255	210	82%	165	79%	67	26.3%
2016	224	182	81%	126	69%	37	16.5%
2017	287	236	82%	157	67%	50	17.4%
2018	259	221	85%	149	67%	48	18.5%
2019	261	205	79%	130	63%	34	13.0%
2020	246	173	70%	116	67%	37	15.0%
2021	322	257	80%	175	68%	62	19.3%
2022	355	276	78%	165	60%	56	15.8%
2023	308	225	73%	132	59%	44	14.3%
2024	354	240	68%	141	59%	60	16.9%
2025	335	165	49%	88	53%	23	6.9%

Mobile Bay's inspection rate has historically been higher than the state average — typically 75-90% through 2022, well above the statewide 50-70%. This may reflect the higher density of permitted sites in the coastal counties (easier to reach) or higher inspector staffing in the Mobile Field Operations Division. However, Mobile Bay has tracked the same downward trend in recent years, falling from 88% inspection coverage in 2014 to 49% in 2025. The enforcement rate has dropped from a peak of 30% in 2012-2013 to 7% in 2025.

Top 15 Builders in the Mobile Bay Watershed

Builder / Permittee	Sites	Inspected	Cited Problem	Enforced	Cited & NOT Enforced
DR HORTON INC	218	170	123	46	91
MOBILE COUNTY COMMISSION	186	134	47	28	39
BALDWIN COUNTY COMMISSION	86	58	52	16	37
BROADWAY GROUP LLC THE	83	78	52	7	47
ALABAMA DEPARTMENT OF TRANSPORTATION	67	27	13	3	13
ALABAMA POWER COMPANY	62	8	6	0	6
ADAMS HOMES LLC	61	60	39	14	30
TRULAND HOMES LLC	61	52	45	12	34
MOBILE CITY OF	57	28	7	4	6
DSLH HOMES GULF COAST LLC	37	35	33	13	20
BALDWIN COUNTY BOARD OF EDUCATION	30	26	24	7	17
FOLEY CITY OF	28	19	12	3	9
COLONY HOMES LLC	27	23	20	10	10
UNIVERSITY OF SOUTH ALABAMA	23	17	5	0	5
LENNAR HOMES OF ALABAMA LLC	21	20	13	5	11

Mobile Bay Builders with the Largest Unenforced Violation Records

Sorted by the number of permitted sites where an inspector cited a BMP problem in writing and no enforcement action was ever filed.

Builder / Permittee	Sites	Inspected	Cited Problem	Enforced	Cited & NOT Enforced
DR HORTON INC	218	170	123	46	91
BROADWAY GROUP LLC THE	83	78	52	7	47
MOBILE COUNTY COMMISSION	186	134	47	28	39
BALDWIN COUNTY COMMISSION	86	58	52	16	37
TRULAND HOMES LLC	61	52	45	12	34
ADAMS HOMES LLC	61	60	39	14	30
DSL D HOMES GULF COAST LLC	37	35	33	13	20
BALDWIN COUNTY BOARD OF EDUCATION	30	26	24	7	17
FAIRHOPE CITY OF	18	16	16	1	15
DAPHNE CITY OF	20	17	16	2	14
ALABAMA DEPARTMENT OF TRANSPORTATION	67	27	13	3	13
LENNAR HOMES OF ALABAMA LLC	21	20	13	5	11
MARONDA HOMES LLC OF ALABAMA	15	13	11	0	11
COLONY HOMES LLC	27	23	20	10	10
TRULAND HOMES INC	20	19	17	9	10

Statewide BMP Category Breakdown

Across the entire 2011-2026 dataset, the count of unique construction sites where an inspector cited each BMP category as failing or absent in writing.

BMP Category	Unique Sites Cited
General "Best Management Practices not implemented" finding	12,738
Vegetation / slope stabilization missing	4,105
Silt fence not maintained	3,608
Inlet / storm drain protection failing	2,346
Gravel construction entrance inadequate	1,165

Categories are not mutually exclusive — a single inspection often cites multiple categories on the same site. Total unique sites with any cited problem: 8,519.

Statewide Top 15 Builders by Total Sites Started

Builder / Permittee	Sites	Inspected	Cited Problem	Enforced	Cited & NOT Enforced
ALABAMA DEPARTMENT OF TRANSPORTATION	924	180	119	23	109
ALABAMA POWER COMPANY	631	73	57	8	51
BROADWAY GROUP LLC THE	535	408	313	45	282
DR HORTON INC	506	321	220	99	150
MOBILE COUNTY COMMISSION	187	135	47	28	39
BELLSOUTH COMMUNICATIONS INC	176	23	19	1	18
HUNTSVILLE CITY OF	140	75	50	9	43
ADAMS HOMES LLC	111	97	68	33	43
TENNESSEE VALLEY AUTHORITY	95	26	21	1	21
BALDWIN COUNTY COMMISSION	86	58	52	16	37
LENNAR HOMES OF ALABAMA LLC	83	35	17	9	14
BRASFIELD AND GORRIE LLC	66	23	16	4	13
SPIRE ALABAMA INC	65	8	7	1	6
DSLH HOMES GULF COAST LLC	64	52	39	18	25
U S ARMY	63	3	1	1	1

Statewide Top 15 Builders with the Largest Unenforced Violation Records

Builder / Permittee	Sites	Inspected	Cited Problem	Enforced	Cited & NOT Enforced
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BALDWIN COUNTY COMMISSION	86	58	52	16	37
TRULAND HOMES LLC	61	52	45	12	34
DSLH HOMES GULF COAST LLC	64	52	39	18	25
TENNESSEE VALLEY AUTHORITY	95	26	21	1	21
BELLSOUTH COMMUNICATIONS INC	176	23	19	1	18
BIRMINGHAM CITY OF	42	24	23	5	18
MCDONALDS USA LLC	33	27	18	4	17
ATHENS CITY OF	37	28	21	6	17

Methodology

Data sources. Two ADEM public web systems were queried: the eFile search portal at `app.adem.alabama.gov/eFile` and the Laserfiche WebLink document archive at `lf.adem.alabama.gov/WebLink`. The eFile portal was queried year-by-year from June 8, 2009 (system inception) through April 27, 2026, filtering on Water media area and the ALR10 permit prefix that identifies NPDES Construction General Permit coverages. All 123,424 returned document records were captured.

Site count. Each unique permit number with at least one Notice of Intent (NOI) document is counted as one construction site. The "start year" is the year of the earliest NOI filing on that permit, accounting for amendments and re-filings that would otherwise inflate counts.

Inspection extraction. All 33,326 INSPR-type documents on permits with NOIs were downloaded individually from Laserfiche, parsed in memory, and discarded. Three parser paths were used depending on document format: PDF documents (the post-2018 AEPACS standard) via LiteParse OCR; Microsoft PowerPoint and Word Open XML documents (common pre-2018) via direct Python parsing; and legacy Compound Document format via LibreOffice round-trip conversion. 33,205 inspections (99.6%) parsed successfully. The remaining 121 documents were

unreachable on the Laserfiche server.

BMP categorization. Inspector narrative text and inspection-form photo captions were scanned for keyword phrases identifying the five BMP categories listed above, with a context window check for negative-finding language ("not maintained", "inadequate", "absent", "failing", etc.) to distinguish a cited *problem* from a routine mention. This is a high-precision, conservative categorization — it counts only inspector-written findings, not inferred violations.

Enforcement. A site is counted as "enforced" if any of three formal enforcement document types appear on the permit: Notice of Violation (ENOV), Enforcement Warning Letter (EWL), or Enforcement Action Order (EAO). Routine correspondence and engineering reports are not counted as enforcement.

What this analysis does not capture. Self-reported inspections that did not result in formal ADEM filings; informal inspector-permittee communications outside the document record; verbal warnings; settlements that did not generate a public document; pre-2009 paper-era inspections. The analysis also does not independently verify the inspector's findings — a future "vision verification" pass could compare inspection photos against the inspector's written conclusions.

Reproducibility. All raw scraping output (rows_YYYY.jsonl), per-site CSVs, per-company CSVs, per-year trend CSVs, and the inspection text-extraction CSVs are preserved alongside this report. Re-running the analysis from scratch on the same window of data should produce identical numbers.

This report was generated as part of an exploratory data analysis project. It is not a formal regulatory or legal document. All conclusions about ADEM staffing, enforcement intent, or builder behavior are based on patterns in the public document record alone.